County Administration Workshop: March 10, 2026
1:30 p.m. – Board of Commissioners Conference Room
Attending: Commissioners Ron Smith; Colene Martin; Gary Richardson; and Nikole Guzman, Recorder

Chair Ron Smith called the meeting to order at 1:30 p.m.

1. **Declaration of Potential Conflicts of Interest**

Each Commissioner present reviewed the agenda.

2. **Department Business**
   a. **Legal Counsel**
      1. **Underground Right of Way Easement with T-Mobile West, LLC, for underground electric distribution and communication lines on County property located at 370 Bowhill Rd.**

Wally Hicks, County Counsel, and Helene Lulich, Property Manager, presented a request for an underground right-of-way easement on County property located at 370 Bowhill Road. Ms. Lulich explained the property currently supports two cell towers utilizing a shared power source. T-Mobile requires a separate underground power line, similar to an existing easement held by U.S. Cellular. *Commissioner Martin made a motion to approve the Underground Right of Way Easement with T-Mobile West, LLC, for underground electric distribution and communication lines on County property located at 370 Bowhill Rd. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

      2. **Extension of Franchise Agreement with Spectrum Pacific West, LLC formerly known as Falcon Cable Systems Company**

Mr. Hicks, County Council, provided the board with a franchise agreement with Josephine County and Charter. The agreement has been in place for decades. This franchise is pursuant to section 2.2 for 10-year term and additional 5 years. The principal portion that matters in Section 13 to public education and government access. Currently the county does not receive PEG support. Ken Clever, Information Technology Interim Director, informed the board that the county receives around $50,000 in funds for PEG channel. The county would need to purchase new equipment for around $15,000.00. and would need to obtain coders for the connection to charter. Mr. Clever stated Tri-Star would be best for camera upgrades with a price tag starting at $20,000.00. The Board discussed gauging public demand before proceeding further. Currently there is no deadline for this project.

      3. **Federal Land Use Coordination Letters**

Mr. Hicks, County Council, discussed the annual exercise that the county has been doing for a few years now. Commissioner Smith stated he felt this was a very important subject as it could be a big benefit to the County to coordinate with them. There is no set time, but we want to tell the federal government that we are serious about this. Commissioner Smith would like to provide copies of Coordination. Commissioner Richardson aked that the letter to be sent to state representatives. *Commissioner Martin made a motion to approve the Federal Land Use Coordination Letters. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

      4. **Conflict Waiver – D'Amore Law Firm**

Mr. Hicks, County Council, D'Amore Law Firm has been providing services to the Opioid Litigation on behalf of Josephine County. There is still more to go on this matter, however they are requesting a Conflict Waiver. Mr. Hicks reviewed the Tort and sees no connection from the conduct with the Opioid Litigation. Mr. Hicks stated the firm would be reluctant to take Josephine County on as a client down the road if the Conflict Waiver was not passed. Commissioner Martin has asked for a conversation with Tom D'Amore. The Board has agreed to bring this matter back to the board to the next Admin Workshop Meeting March 11, 2026.

      5. **BOLI Case Numbers STEMPL250306-60501, STEMWB250804-61239, AGEMAG250417-60485**

Mr. Hicks, County Council, brought to the board the BOLI cases with three former county employees who have been named. The recommendation has been reflected in the packets provided to the board. *Commissioner Martin made a motion to approve the BOLI Case Numbers STEMPL250306-60501, STEMWB250804-61239, AGEMAG250417-60485. The motion was seconded by Commissioner Richardson. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.*

      6. **Public Comment on BLM Western Oregon Timber Plan (deadline March 23)**

Commissioner Smith brought this matter to the board a letter he would like the board to send out regarding O&C Timber Sale Receipts. Commissioner Martin and Commissioner Richardson had further input to add/change to the letter. The Board directed staff to re-write the letter and bring it back to the board to re-convene on the matter.

b. Airport

1. Illinois Valley Airport Avgas Fueling System

Cheri Jadot, Airports, provided 5 bids to the board. Asking for confirmation of the letter with Precision Engineer. The Funding came from HB5202 Bill. Monies came in 2023 $750,000.00 with interest. 60 days for completion of the fuel tank in summer 2026. The board directs staff to provide a plan with maintenance. Once this award is concurred, there is a 7-day protest period. The hopeful date of actual fueling is about September. The Board approves without objection.

c. Information Technology

1. Web-based Platforms for Josephine County Meetings

Ken Clever, IT Interim, brought the discussion about YOUTUBE and how the County deals with strikes from the channel. When a video is reported by someone to You-tube, it becomes restricted. The first strike you lose a week of access. The second strike is 2 weeks, and the third strike is a removal of the channel. The county ultimately changed the way they share to You-tube for live but moves the video to a site without strike conflicts.

d. Planning

1. Williams Appeal Findings of Fact Decision

James Black, Planning and Development Director, and Chase, Attorney, brought this matter to the board as a request to agree to the next step. This is not a request for this Board to make any anterior findings currently. It is closed at the point.
Commissioner Richardson made a motion to approve the Williams Appeal Findings of Fact Decision. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.

e. Human Resources

1. Personal Requisitions

a. Assessor, Personal Property Technician, Refill Vacant Position

b. Juvenile Justice, Group Life Counselor, Change Job Title and Update Description

c. Sheriffs Office, Police Support Technician – Land, Refill Vacant Position

2. Personnel Actions

a. Corrections, Parole/Probation Officer – Basic, New Hire

b. Public Works, Senior Department Specialist, Re-Hire

Michelle Shaw, Human Resources Director, brought the board Personal Requisitions and Personnel Actions **for approval.** Chris Parton, provided additional context regarding staffing history and departmental needs. Mr. Parton provided data sheet of FTE Staffing Level History for the current year. Exhibit 1.

3. BOARD BUSINESS

a. Anne Basker Auditorium Rental Application from the American Red Cross

Commissioner Martin made a motion to approve the Anne Basker Auditorium Rental Application from the American Red Cross. The motion was seconded by Commissioner Smith. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.

b. Anne Basker Auditorium Rental Application from the Josephine County Circuit Court

Commissioner Richardson made a motion to approve the Anne Basker Auditorium Rental Application from Josephine County Circuit Court. The motion was seconded by Commissioner Martin. Upon roll call; Commissioner Richardson – yes, Commissioner Martin – yes, Commissioner Smith – yes. Motion carried 3-0.

4. OTHER

Commissioner Martin brought up Code Enforcement and has received 2-3 complaints about it and would like to discuss how to move forward with it to get it handled. Commissioner Smith directed Commissioner Martin to contact Michelle Shaw, HR Director, on the matter. Commissioner Martin stated that there would be much contention over Code Enforcement and how the public may be split on what Code Enforcement will enforce on major to minor understanding.

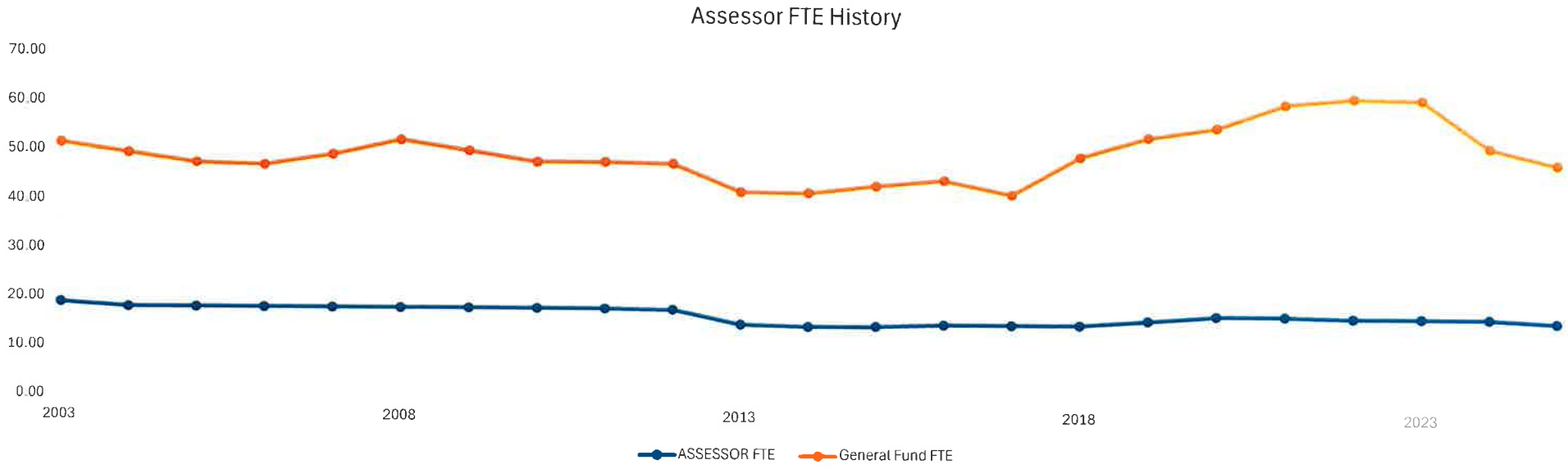
5. ADDITIONAL SUBJECT MATTERS FROM COMMISSIONERS/ANNOUNCEMENTS:

None

The meeting adjourned at 3:15 p.m.

Exhibit 1- FTE Staffing Level History

FYE	2003	2004	2005	2006	2007	2008	2009	2010	2011	2012	2013	2014	2015	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	2026	Average
ASSESSOR FTE	19.00	18.00	18.00	18.00	18.00	18.00	18.00	18.00	18.00	17.80	14.85	14.50	14.60	15.00	15.00	15.00	16.00	17.00	17.00	16.75	16.75	16.75	16.00	15.00	16.71
General Fund FTE	51.66	49.60	47.65	47.25	49.35	52.44	50.30	48.05	48.15	47.90	42.23	42.12	43.57	44.81	41.93	49.68	53.70	55.77	60.65	61.95	61.67	51.94	48.65	40.63	49.65
% Of GF	37%	36%	38%	38%	36%	34%	36%	37%	37%	37%	35%	34%	34%	33%	36%	30%	30%	30%	28%	27%	27%	32%	33%	37%	34%



Assessor 2024-25 FTE	**16.00**
DOR Model Est	**21.50**
Difference	**5.50**
Low By	**34%**

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Exhibit-1

S:\Assess\ADMIN\Budget\FTE Staffing Level History.xlsx

3/10/2026